

Advance Impex Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 22 August 2016 (interim 9 September 2009) · Writ - C No. 48344 of 2009 · **Writ dismissed as infructuous by lapse of time.**

HEADNOTE

Challenge to an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005 was not decided on merits. After a 2009 interim restraining the demand while the writ was listed with similar matters, the petition was dismissed as infructuous by lapse of time on the petitioner's statement.

FACTUAL SUMMARY

The petitioner company challenged PVVNL's 5 February 2009 demand notice seeking additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 9 September 2009 the Court listed the writ with similar 2009 matters, including Vehlina Steels (WP 30582/2009), and, following that sister interim, restrained the respondents from demanding additional security until further orders, without prejudice. In August 2016 counsel stated the petition had become infructuous by lapse of time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The legality of the additional-security demand under para 4.20 was not decided. After listing with similar 2009 writs and an interim restraint on the demand following a sister order, the writ was dismissed as infructuous by lapse of time on counsel's statement. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 5 February 2009 demand was not examined on merits; the writ was dismissed as infructuous. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s. Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009 (order dated 23 June 2009)			1	Referred